

§ 732. Originating proceeding to adjudicate need for supervision. A proceeding to adjudicate a person to be in need of supervision is originated by the filing of a petition, alleging:

(a) (i) the respondent is an habitual truant or is ungovernable or habitually disobedient and beyond the lawful control of his or her parents, guardian or lawful custodian, or has been the victim of sexual exploitation as defined in subdivision one of section four hundred forty-seven-a of the social services law, and specifying the acts on which the allegations are based and the time and place they allegedly occurred. Where habitual truancy is alleged or the petitioner is a school district or local educational agency, the petition shall also include the steps taken by the responsible school district or local educational agency to improve the school attendance and/or conduct of the respondent;

(ii) the respondent was under eighteen years of age at the time of the specified acts;

(iii) the respondent requires supervision or treatment; and

(iv) the petitioner has complied with the provisions of section seven hundred thirty-five of this article; or

(b) the respondent appears to be a sexually exploited child as defined in paragraph (a), (c) or (d) of subdivision one of section four hundred forty-seven-a of the social services law but only if the child consents to the filing of a petition under this article.